



CHAPTER lxxxii.

An Act to authorise the Baker Street and Waterloo Railway Company to acquire additional lands to confer further powers and for other purposes. A.D. 1904.
[22nd July 1904.]

WHEREAS the Baker Street and Waterloo Railway Company (herein-after called "the Company") was incorporated by the Baker Street and Waterloo Railway Act 1893 (herein-after called "the Act of 1893") and was thereby and by Acts passed in 1896 1899 and 1900 (herein-after called "the Acts of 1896 1899 and 1900" respectively) authorised to construct the underground railways and subways and other works in those Acts described (herein-after called "the railway") and by Acts passed in 1902 and 1903 (herein-after called "the Acts of 1902 and 1903" respectively) further powers were conferred on the Company :

And whereas the new stations herein-after mentioned would be of great public convenience and would greatly facilitate the working of the traffic on the railway and it is expedient that for the purposes of constructing the said stations the Company should be authorised to enlarge their existing tunnels and to acquire and use the lands in the metropolitan boroughs of Paddington and Saint Marylebone herein-after mentioned :

And whereas it is expedient that part of section 80 of the Act of 1893 should be repealed as by this Act provided :

And whereas it is expedient that the Company should be authorised to raise additional capital and apply their funds for the purposes of this Act and for the general purposes of their undertaking :

A.D. 1904. And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and the lands proposed to be acquired compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of London and are herein-after respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. **1.** This Act may be cited as the Baker Street and Waterloo Railway Act 1904 and the Baker Street and Waterloo Railway Act 1893 the Baker Street and Waterloo Railway Act 1896 the Baker Street and Waterloo Railway Act 1899 the Baker Street and Waterloo Railway Act 1900 the Baker Street and Waterloo Railway Act 1902 the Baker Street and Waterloo Railway Act 1903 the Baker Street and Waterloo Railway (Extension of Time) Act 1903 and this Act may for all purposes be cited together as the Baker Street and Waterloo Railway Acts 1893 to 1904.

Incorporation of Acts. **2.** The following Acts or parts of Acts are (so far as the same are applicable and where not expressly varied by or inconsistent with this Act) incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

The Companies Clauses Consolidation Act 1845 :

The Companies Clauses Act 1863—

Part I. (relating to cancellation and surrender of shares) ;

Part II. (relating to additional capital) ;

Part III. (relating to debenture stock) thereof as amended by any subsequent Act.

3. In this Act unless the context otherwise requires—

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The expression "the Company" means the Baker Street and Waterloo Railway Company ;

Interpretation.

The expression "the Company's Acts" means the Company's Acts of 1893 1896 1899 1900 1902 and 1903 ;

The expression "the railway" or "the tunnels" means the railway and tunnels authorised by the Acts of 1893 1896 1899 and 1900.

4. Notwithstanding anything contained in the Company's Acts or shown on the deposited sections therein referred to the Company may for the purposes of constructing new stations on the railway at or near—

Enlargement of tunnels for station purposes.

(A) The junction of the Westminster Bridge Road and the Kennington Road in the parish and metropolitan borough of Lambeth ;

(B) Park Crescent Gardens between the Marylebone Road and Portland Place in the parish and metropolitan borough of Saint Marylebone ;

(C) The junction of the Harrow Road and Edgware Road in the parish and metropolitan borough of Paddington and Bell Street and Edgware Road in the parish and metropolitan borough of Saint Marylebone ;

enlarge the tunnels and may construct the same in the lines and according to the levels shown on the deposited plans and sections.

5. For the protection of the mayor aldermen and councillors of the metropolitan borough of Southwark (in this section called "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say) :—

As to station of Company at Elephant and Castle and subways in connexion therewith.

(1) The Company shall not construct an underground station under the roadways converging near the Elephant and Castle or subways for the accommodation of pedestrian traffic in the manner mentioned in section 30 subsection 17 of the Act of 1900 and shall not make any opening on the surface of those roadways but nothing in this section contained shall be deemed to relate to or affect the Company's powers under the Act of 1900 as extended by the Baker Street and Waterloo Railway

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(Extension of Time) Act 1903 to construct a tube station at rail level or Subway No. 2 by the Act of 1900 authorised:

- (2) The council may at any time within three years after the passing of this Act construct subways and entrances thereto in the general lines shown in the plan referred to in the said section 30 subsection 17 of the Act of 1900 or in such modified lines as the council may determine and may maintain the same and the powers of the Company under the Act of 1900 so far as they are necessary for the construction and maintenance of such subways are hereby transferred to and vested in the council as if the council had been therein mentioned instead of the Company:
- (3) The council may with the consent of the London County Council subject to appeal in accordance with section 4 subsection (1) of the London Government Act 1899 borrow at interest such money as may be necessary (in addition to any sums received by the council from the Company) for the purposes of this section and in order to secure the repayment of the money borrowed and the payment of interest thereon may mortgage or charge the general rate of the metropolitan borough of Southwark and shall pay off all moneys borrowed by them under this section within such period as the London County Council or the Local Government Board on appeal as aforesaid may sanction:
- (4) Sections 183 185 186 187 188 and 189 of the Metropolis Management Act 1855 shall so far as applicable apply to money which the council are by this section authorised to borrow.

Amendment
of section 80
of Act of
1893.

6. Notwithstanding anything contained in subsection (3) section 80 of the Act of 1893 the Company shall in the construction of their station tunnels be at liberty to deviate upwards from the levels shown on the deposited sections in the said Act referred to for a distance of two hundred lineal feet on each side of the Metropolitan Railway where the same passes under the Marylebone Road but so that where such tunnels pass under the Metropolitan Railway the nearest point thereof shall be constructed at such a depth not exceeding thirty feet or (where the same shall or may pass under the Baker Street station) not exceeding twenty-six feet

below the level of the rails of the Metropolitan Railway as the engineer of that company shall direct and that the provisions of the said section 80 of the Act of 1893 as hereby amended shall apply for the protection of the Metropolitan Railway Company to the same extent and effect as if they had been re-enacted in this Act. A.D. 1904.

7. In addition to any other lands which they are authorised to acquire the Company may enter on take and use all or any of the lands situate in the metropolitan boroughs of Paddington and Saint Marylebone and delineated on the deposited plans and described in the deposited book of reference Provided always that the Company shall not acquire the properties numbered 3 and 4 on the deposited plans (under the heading of additional lands) for the metropolitan borough of Saint Marylebone fronting on to Lisson Grove. Power to acquire lands.

8. The Company shall not except with the approval of the Commissioners of Works erect any station for generating electricity or take a supply of energy for traction purposes from any generating station unless the site for such generating station is specified in an Act of Parliament or in an Order confirmed by or having the effect of an Act of Parliament Provided always that this section shall not apply to any sub-station for the transformation and distribution of electrical power Provided also that this section shall not apply to any station in existence at the time of the passing of this Act. For protection of Commissioners of Works.

9. The following provisions for the protection of the trustees of Christ Church Lambeth Road (in this section called "the trustees") shall unless otherwise agreed between the Company and the trustees be observed and have effect (that is to say):— For protection of trustees of Christ Church Lambeth Road.

(1) The expression "premises" when used in this section means and includes the church called Christ Church in the Lambeth Road and the offices cellars and premises connected therewith belonging to the trustees:

(2) The tunnels for the railway and works shall where they pass the premises be formed of iron tubes or tunnels not exceeding 25 feet or thereabouts internal diameter and the works shall be carried on by means of a steel shield with a cutting edge to be forced by hydraulic pressure into the clay in advance of the excavation and

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in such manner as to obviate the risk of movement in the soil over or near to the tunnels:

- (3) Except in the case of unforeseen accident or for the purpose of removing trifling amounts of water no use shall be made of pumping for removing water from the tunnels within 100 feet from the premises:
- (4) The trustees may from time to time appoint a competent engineer to be agreed upon (or failing agreement to be appointed by the President of the Institution of Civil Engineers) who may from time to time inspect the works within the said limits during construction and the Company shall give the person so appointed all necessary facilities for such inspection and if he shall be of opinion that the construction of the works or other operations of the Company are attended with danger to the premises the Company shall forthwith adopt such reasonably additional measures and precautions as may be considered necessary for the purpose of preventing damage or injury to the premises and in the event of any difference arising between the trustees and the Company with reference thereto such difference shall be referred to an engineer to be appointed by the President of the Institution of Civil Engineers for the time being on the application of either party whose decision shall be final. The costs of such reference and of the award shall be borne as such engineer shall direct.

For protec-
tion of Baker
Estate.

10. Section 34 of the Baker Street and Waterloo Railway Act 1900 shall apply to the lands situate in the metropolitan borough of Saint Marylebone and numbered 1 2 3 and 4 on the plan relating to the additional lands deposited for that borough in respect of this Act as though the said section were herein repeated and as though the lands numbered 1 2 3 and 4 afore-said were referred to in subsection 3 thereof in lieu of the lands referred to in that subsection and as though Sir Randolph Littlehales Baker were described in subsection 1 thereof as being or claiming to be the owner in fee of the Baker Estate.

For protec-
tion of trus-
tees of Wil-
liam Haynes
deceased.

11. The Company shall not enter upon take or use any portion of the surface of the lands situate in the metropolitan borough of Paddington and numbered 5 to 11 both inclusive on the plan relating to additional lands deposited for that borough

in respect of this Act nor shall the Company in the execution of their works under such lands numbered 5 to 11 both inclusive tunnel upwards to such an extent as to bring the crown of any tunnels which may be constructed thereunder within a distance of sixty-five feet from the surface of such lands. A.D. 1904.

12. For the protection of the mayor aldermen and councillors of the metropolitan borough of Lambeth (herein-after in this section called "the council") the following provisions shall unless otherwise agreed on between the Company and the council apply and have effect (that is to say):— For protection of metropolitan borough of Lambeth.

- (1) The Company shall not make any opening or boring in any roadway or footpath within the borough of Lambeth except at such points as the council may allow and under such regulations and conditions as the council may prescribe :
- (2) The Company shall not deposit any soil subsoil or materials anywhere within the said borough so as to cause any nuisance or obstruction to any person using the streets roads or footways thereof :
- (3) All costs charges and expenses properly incurred by the council in removing any soil dropped on any road in consequence of the execution of the works shall on demand be paid by the Company to the council and be a debt due to the council by the Company :
- (4) The Company shall make full compensation to the council for any subsidence of or damage to any road footpath sewer drain or other work vested in or under the jurisdiction or control of the council which may be caused by or in consequence of the act or default of the Company their contractors servants or agents and whether such damage or subsidence shall happen during the construction of the works by the Company or at any time thereafter :
- (5) The reasonable costs charges and expenses of or incurred by the council in respect of the inspection and approval of any plans or sections hereby required to be submitted to them or in respect of any other matter under this section shall be borne and paid by the

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Company and be a debt due from the Company to the council:

- (6) If and while the Company are possessed of any lands in the borough of Lambeth assessed or liable to be assessed in that borough to the general rate they shall from time to time until the works for the purposes for which the Company may have acquired such lands are completed and assessed or liable to be assessed in that borough to the respective rates be liable to make good the deficiency in the assessment for the respective rates by reason of those lands being taken or used for the purposes of the said works and the deficiency shall be computed according to the value at which those lands with any buildings thereon were assessed to the last rate made before the passing of this Act and on demand the Company shall in each case pay the deficiency to the collector of the respective rates provided that such deficiency shall be computed as and from the first day of October one thousand nine hundred and three.

Saving
rights of
Crown.

13. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any land or hereditaments (including the subsoil and under-surface of any street road or subway) or any rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods otherwise than in accordance with an agreement dated the twenty-second day of June one thousand nine hundred and three and made between the King's most Excellent Majesty of the first part John Francis Fortescue Horner a Commissioner of Woods of the second part and the Company of the third part without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent such commissioners are hereby authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

14.—(1) Whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient

for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

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(2) With respect to the properties shown on the deposited plans which are described or referred to in the Second Schedule to this Act the Company shall not be required wholly to take the same or any part of the surface thereof but they may purchase take and use and the owners of and other persons interested in any such property shall sell and grant an easement or right of using the subsoil or under-surface thereof for the purposes for which but for this enactment they might have been required to sell such property and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such subsoil easement or right of user. Provided that no such subsoil easement or right of user shall be deemed part of the house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 but nothing in this section contained nor any dealing with lands in pursuance of this section shall relieve the Company from liability to compensation under the 68th section of the said Act. And every case of compensation shall in case of dispute be ascertained according to the provisions of the Lands Clauses Acts.

Owners may be required to grant easements only under certain properties.

15. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

16. If the said works are not completed within five years from the passing of this Act then on the expiration of that period

Period for completion of works.

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Act, 1904.

A.D. 1904. — the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Application
of Com-
pany's Acts.

17. Save as in this Act expressly provided all provisions of the Company's Acts in relation to the exercise of powers by the Company or for the protection of any local or other authority company or person shall apply in relation to the works authorised by this Act and to the lands buildings and other property taken under the authority of this Act as if those provisions had been specifically re-enacted in this Act.

Company
not to take
surface of
lands in
metropolitan
borough of
Paddington.

18. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not without the consent of the London County Council enter upon purchase take use or interfere with any part of the surface of the lands numbered respectively 5 6 7 8 9 and 10 on the deposited plans relating to the metropolitan borough of Paddington (except the subsoil of such lands at a depth not less than forty feet below the present surface of such lands) and the Company shall not in constructing any railways or works in or under such lands or any part thereof deviate vertically in an upward direction more than five feet from the levels shown on the deposited sections.

For protec-
tion of Lon-
don County
Council's
tramways.

19.—(1) Any railway or works of the Company authorised by this Act in or under any street or road in which there is any tramway of the London County Council (in this section called "the council") shall be so constructed as not in any way to interfere with or impede the safe and efficient working of such tramway or to interfere with or impede the reconstruction or adaptation of any such tramway for electrical traction.

(2) If in constructing or working the said railways or works the Company or their contractors servants or agents shall interfere with or impede the safe and efficient working of any tramway of the council or shall cause any damage to or otherwise injuriously affect any such tramway the Company shall make full compensation to the council therefor and shall indemnify and save harmless the council from and against all claims demands proceedings costs damages and expenses made or taken against or incurred by the council on account of or attributable directly or indirectly to the construction and working of the said railways and works.

Deposit
money not
to be repaid

20. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum

of twelve thousand eight hundred and fifty-eight pounds four shillings and one penny two and a half per centum consolidated stock being equal in value to five per centum upon the amount of the estimate in respect of works has been deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act which sum is referred to in this Act as the deposit fund. Be it enacted that notwithstanding anything contained in the said Act the said deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them which persons survivors or survivor are or is in this Act referred to as the depositors unless the Company shall previously to the expiration of the period limited by this Act for the completion of the works open the same for the public conveyance of passengers and if the Company shall make default in so opening the works the deposit fund shall be applicable and shall be applied as provided by the next following section. Provided that if within such period as aforesaid the Company open any portion of the works for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the portion of the works opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the portion of the works so opened bears to the works hereby authorised the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

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except so far
as railway is
opened.

21. If the Company do not previously to the expiration of the period limited for the completion of the works complete the same and open them for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the works or any

Application
of deposit.

A.D. 1904. — portion thereof or who have been subjected to any injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid to the depositors Provided that until the deposit fund has been repaid to the depositors or has become otherwise applicable as herein-before mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

Power to
 apply funds
 to purposes
 of Act and
 undertaking.

22. The Company may apply for the purposes of this Act or to the general purposes of their undertaking and to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or mortgage or debenture stock.

Power to
 raise addi-
 tional capi-
 tal.

23. The Company may subject to the powers of Part II. of the Companies Clauses Act 1863 raise any additional ordinary capital not exceeding in the whole two hundred and eighty-eight thousand pounds by the issue of new ordinary shares of ten pounds each but no share shall vest in the person accepting the same unless and until a sum not less than one-fifth of the amount of such share shall have been paid in respect thereof.

New shares
 or stock to
 be subject to
 same inci-
 dents as
 other shares
 or stock.

24. The capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

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25. The capital in new shares or stock so created shall form part of the capital of the Company.

New shares or stock to form part of capital of Company.

26. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or the whole amount of such stock as the case may be.

Dividends on new shares or stock.

27. The Company may in respect of the additional capital of two hundred and eighty-eight thousand pounds which they are herein-before authorised to raise for the general purposes of this Act from time to time borrow on mortgage of the undertaking any sums not exceeding in the whole ninety-six thousand pounds in manner following (that is to say) The Company may as each sum of one hundred thousand pounds of such additional capital has been issued and accepted and one-half of each such sum has been paid up borrow on mortgage any sums not exceeding thirty-three thousand three hundred and thirty-three pounds and in respect of the remaining eighty-eight thousand pounds may borrow any sum not exceeding twenty-nine thousand three hundred and thirty-four pounds but no part thereof shall be borrowed until the whole of the said additional capital in respect of which the borrowing powers are to be exercised is issued and accepted and one-half of such capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares or stock or shares and stock for the whole of such portion of capital have been issued and accepted and that one-half of such portion of capital has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in the said portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares or stock or shares and stock as the case may be were issued and accepted and such one-half of the said portion of capital was paid up bonâ fide and that such shares or stock or shares and stock as the case may be are held by the persons to whom the same were issued or their executors administrators successors or assignees and also in so far as the said portion of capital is raised by shares that such persons

Power for Company to borrow.

A.D. 1904. — their executors administrators successors or assignees are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Extending provisions of Act of 1893 for appointment of a receiver.

28. The provisions contained in section 23 of the Act of 1893 as to the appointment of a receiver shall extend and be applicable to this Act as if the same had been re-enacted in this Act with reference thereto.

Debenture stock.

29. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 24 of the Act of 1893 Provided always that the provisions of this section shall apply to the amounts authorised to be borrowed on mortgage under the Acts of 1900 and 1902 and have effect in relation thereto and so that the interest on all debenture stock of the Company authorised and issued or to be issued under the Acts of 1893 to 1903 and under this Act shall rank *pari passu*.

Power to pay interest out of capital during construction.

30. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith contained it shall be lawful for the Company out of any money by this Act authorised to be raised to pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payment until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions herein-after stated (that is to say) :—

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two-thirds at least of the additional share capital of the Company authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

(B) Such interest shall not accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear : A.D. 1904.

(c) The aggregate amount to be so paid for interest shall not exceed forty thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :

(D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :

(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as herein-before set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

31. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

32. Nothing in this Act contained shall exempt the Company or the railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken. Saving for general Railway Acts.

A.D. 1904.
Costs of Act.

33. The costs charges and expenses of and incidental to preparing obtaining and passing this Act shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS AND BUILDINGS IN THE COUNTY OF LONDON OF WHICH PARTS ONLY MAY BE REQUIRED.

Metropolitan Borough.	Numbers on the deposited Plans.
ADDITIONAL LANDS.	
Saint Marylebone - -	2 and 4
Paddington - -	1 2 4 5 6 7 8 9 10 and 11

THE SECOND SCHEDULE.

LANDS AND BUILDINGS IN THE COUNTY OF LONDON IN RESPECT OF WHICH EASEMENTS MAY BE TAKEN.

Metropolitan Borough.	Numbers on the deposited Plans.
ENLARGEMENT OF TUNNELS FOR STATION.	
Saint Marylebone - -	2 3 4 5 6 8 9 10 11 12 13 14 and 15

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